



Appeal Decision

Site visit made on 28 July 2026

by Chris Mayes CMLI

an Inspector appointed by the Secretary of State

Decision date: 3 September 2026

Appeal Ref: 6008062

**Land to North of Helm Lane, Mill Bank, Sowerby Bridge, Calderdale,
West Yorkshire HX6 3DU**

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr & Mrs Wetherall against the decision of Calderdale Metropolitan Borough Council.
 - The application reference is 25/00736/FUL.
 - The development proposed is temporary rural workers dwelling.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. Since the appeal was lodged, the National Planning Policy Framework (the Framework) has been updated. I have determined the appeal on the basis of the current Framework. The parties, through the evidence submitted with the appeal, have had the opportunity to address the planning merits of the proposal, including matters relating to rural workers' dwellings, development outside settlements and development in the Green Belt. I am satisfied that the changes to the Framework do not alter the substance of the main issues in this appeal or prejudice either party.
3. Although the decision notice refers to Policies WA1 and GN3 of the Calderdale Local Plan 2018/19-2032-33 (March 2023) (the LP), those policies do not underpin the Council's reasons for refusal and have not been relied upon by either party during the appeal. In the circumstances of this case, they do not give rise to a separate matter requiring determination and do not affect my assessment of the main issues. I have therefore not undertaken a separate analysis of those policies.

Main Issues

4. The main issues are:
 - whether the proposal would be inappropriate development in the Green Belt having regard to the Framework and relevant development plan policies, including any relevant effects on the openness of the Green Belt;
 - whether the site would be a suitable location for the proposed dwelling, having regard to its countryside location, accessibility to services and facilities, opportunities for travel by sustainable modes of transport, and the development plan strategy for housing on non-allocated sites;

- the effect of the proposal on highway safety, with particular regard to the suitability of the site access and visibility for users of the highway;
- whether satisfactory foul and surface water drainage, and an adequate potable water supply, can be secured for the development; and
- whether the harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the proposal.

Reasons

Whether Inappropriate Development and Openness

5. The appeal site lies within the Green Belt. The appellants contend that the proposed dwelling should be considered in the context of its agricultural function and temporary nature. While I accept that the proposal would support the operation of the existing smallholding, it would nevertheless provide residential accommodation.
6. Policy GB6 of the Framework provides that development in the Green Belt is inappropriate unless it falls within one of the exemptions identified in Policy GB7. Having regard to the evidence before me, I find that the proposed development would not fall within any of those exceptions. Consequently, the proposal would constitute inappropriate development in the Green Belt. Inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. Substantial weight should be given to any harm to the Green Belt, including harm to openness.
7. In addition to the definitional harm, the proposal would introduce a new residential building and associated domestic activity onto land that is presently open in character. The building would not be visually prominent due to its siting and the screening provided by existing vegetation. Nevertheless, openness is not solely a matter of visibility. Although modest in scale and located adjacent to the existing agricultural building, the proposal would add built form where none currently exists. Consequently, the scheme would reduce the spatial openness of the Green Belt at the site and, to a lesser degree, its visual openness.
8. For these reasons, I conclude that the appeal proposal would be inappropriate development in the Green Belt and would harm its openness. It would therefore conflict with Policy GB1 of the LP, and the Green Belt policies of the Framework referred to above.

Location

9. The appeal site lies outside any defined settlement, within the countryside and Green Belt, and is not allocated for residential development. Policy HS1 of the LP supports residential development on non-allocated sites where proposals are located sustainably, complement the spatial strategy and objectives of the LP, and accord with other relevant LP policies. The supporting text to the policy makes clear that residential development on non-allocated sites within the Green Belt will be subject to strict control and assessed against Green Belt policy.
10. As set out above, the proposal would conflict with Policy GB1 of the LP by reason of inappropriate development in the Green Belt and the harm it would cause to

openness. Consequently, it would not accord with an important component of the development plan strategy for this location.

11. The site occupies an isolated rural location. Future occupants would be heavily reliant on the private car for access to education, healthcare, shopping and other day-to-day services. Although the appellants argue that occupation of the proposed dwelling would reduce journeys currently made between their existing home and the smallholding, a residential use would also generate its own travel demands. Consequently, notwithstanding any reduction in existing management trips, the proposal would introduce a residential use in a location where opportunities for travel by sustainable modes of transport are limited.
12. Moreover, the appellant's case rests principally on the contention that there is an essential need for a rural worker to live permanently at or near the smallholding. In that regard, Policy HO11(1)(a) of the Framework states that isolated homes in the countryside should only be supported where there is an essential need for a rural worker to live permanently at or near their place of work in the countryside. This is a material consideration of considerable relevance given the nature of the proposal.
13. I do not doubt that the smallholding requires regular attention, nor that certain husbandry operations may occasionally require attendance outside normal working hours. The evidence before me also demonstrates that lambing and farrowing can give rise to time-sensitive situations requiring intervention. Nonetheless, those activities are intermittent and seasonal in nature. While the livestock losses referred to are acknowledged, I have not been provided with sufficient objective evidence regarding the frequency of such events, the extent to which intervention would ordinarily be required, or why the existing arrangements are incapable of meeting the operational needs of the enterprise.
14. I have also had regard to the evidence relating to theft and vandalism at the site. While the recorded incidents are noted, they appear to be isolated events occurring over a period of time rather than substantive evidence of an ongoing need for a permanent residential presence at the site. Furthermore, I have not been provided with evidence that alternative or additional security measures have been considered or implemented at the site. Consequently, the incidents referred to do not, in themselves, demonstrate a need for a permanent residential presence.
15. Likewise, I have considered the business information submitted in support of the appeal, including the appellant's aspirations to expand and further develop the enterprise. However, the issue before me is not whether further expansion may be desirable or achievable, but whether the evidence demonstrates an essential need for a rural worker to live permanently at or near the holding. While the business information indicates an intention to increase the scale of operations in future, I am not persuaded that the current scale and operation of the enterprise demonstrate such a need.
16. Drawing these matters together, I am not persuaded that the evidence demonstrates an essential need for a rural worker to live permanently at or near the holding. Accordingly, I conclude that the proposal would conflict with Policies HS1, IM4 and IM5 of the LP. These seek, among other things, to direct residential development to sustainable locations, reduce reliance upon private car travel, promote sustainable travel choices and ensure that development accords with the wider spatial strategy of the development plan. For similar reasons, the proposal would also fail to satisfy the circumstances described in Policy HO11(1)(a) of the

Framework and would introduce a new dwelling in an isolated countryside location without the justification expected by national policy.

Highway Safety

17. The existing access serves the established agricultural use of the site. I acknowledge the appellant's contention that occupation of the dwelling could reduce certain management journeys currently undertaken between the appellants' home and the smallholding. However, the grant of planning permission would authorise a residential use which would generate its own pattern of vehicle movements in addition to those associated with the existing agricultural use.
18. The evidence indicates that the access emerges onto Helm Lane at a constrained location where visibility is restricted by the curvature of the road, topography and existing boundary features. The carriageway is narrow and opportunities to manoeuvre are limited. Consequently, vehicles entering and leaving the site would experience restricted visibility of approaching traffic and other highway users.
19. I have also had regard to concerns relating to the unbound surface of the access track and the potential for debris or runoff to be deposited onto the highway. Whilst this matter is not determinative on its own, it reinforces my concerns regarding the suitability of the access arrangements.
20. Taking these factors together, I conclude that residential use of the site would materially intensify use of an access that does not meet appropriate standards and would have an unacceptable effect on highway safety. The proposal would therefore conflict with Policy BT4 of the LP which seeks, among other things, to ensure the safe and free flow of traffic in the interests of highway safety and to provide suitable access for users of the highway, including emergency, refuse and service vehicles.

Drainage and Water Supply

21. The appellants have submitted information relating to ground conditions and drainage, including evidence intended to demonstrate the feasibility of a surface water infiltration-based drainage solution. While this provides some assistance, I have not been provided with sufficient evidence to demonstrate that satisfactory foul drainage infrastructure can be secured and maintained over the lifetime of the development. In addition, while the appellants refer to the use of spring water and a proposed borehole, the evidence before me does not satisfactorily demonstrate that a reliable potable water supply would be available to serve the dwelling.
22. I therefore conclude that adequate drainage and water supply arrangements have not been demonstrated. The proposal would conflict with Policy CC3 of the LP which seeks, among other things, to ensure that new development has an adequate water supply, sufficient foul and surface water drainage, and the necessary wastewater infrastructure capacity to serve the development.

Other Matters

23. I have had special regard to the desirability of preserving the setting of the grade II listed Spout Field Farmhouse (List Entry No. 1134546), as required by section 66(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990. However, having regard to the separation distance between the appeal site and the listed building, the absence of intervisibility, and the fact that the building is

designated principally for its architectural and historic interest, I find that the proposal would preserve its setting and would not harm its significance.

Other Considerations and Green Belt Balance

24. The appellants rely on several considerations in support of the proposal. These include the welfare of livestock, the desire to expand and develop the rural enterprise, the temporary nature of the dwelling, and concerns regarding security and crime at the site.
25. For the reasons already given, the evidence does not demonstrate an essential need for residential occupation of the site. Consequently, the weight that I can attach to these matters is limited. I therefore attach limited weight to the benefits associated with supporting a rural enterprise and improving the management of livestock. I also attach limited weight to the temporary nature of the proposal and the potential security benefits arising from a residential presence on the site.
26. The appellants also refer to other developments and decisions that are presented as supporting their case. However, I have not been supplied with the details necessary to demonstrate how these are comparable with the scheme before me. In any event, I am required to determine the appeal on its own planning merits.
27. I have also considered the appellant's concerns regarding the Council's handling of the application. However, the appeal before me is against the planning merits of the proposal and not against the procedures followed by the Council. Those matters do not alter my conclusions on the substantive planning issues.
28. Set against the above considerations is the substantial weight that must be attached to the harm arising from inappropriate development in the Green Belt and the additional harm to openness. There is also harm resulting from the unsuitable location of the dwelling, its effect on highway safety, and uncertainty surrounding drainage and water supply.
29. Taken together, I conclude that the considerations advanced in support of the proposal do not clearly outweigh the harm to the Green Belt and the other harm that I have identified and, therefore, the very special circumstances required to justify a grant of planning permission have not been demonstrated.

Conclusion

30. The proposal would constitute inappropriate development in the Green Belt. It would reduce the openness of the Green Belt and would introduce an unjustified dwelling in an isolated countryside location. It would also have an unacceptable effect on highway safety, and satisfactory drainage and water supply arrangements have not been demonstrated. The other considerations advanced in support of the proposal do not clearly outweigh the identified harm.
31. For the reasons given above, the proposal conflicts with the development plan when read as a whole. There are no material considerations, including the Framework, which indicate that a decision should be made otherwise than in accordance with it. Accordingly, the appeal is dismissed.

Chris Mayes

INSPECTOR